

OFFICE OF THE SECRETARY

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February 18, 2021

The Honorable Victor D. Martinez
Judge of the Superior Court
County of Los Angeles
400 Civic Center Plaza
Pomona, CA 91766

Re: Mark V. King
CDCR No: F44265
Case No: KA074891-01
Date of Sentence: September 5, 2018

Dear Honorable Victor D. Martinez:

The purpose of this letter is to provide the court with the authority to resentence inmate Mark King, F44265 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate King has remained disciplinary free since being received to CDCR on September 21, 2006. Inmate King is currently assigned as a Library Assistant and his supervisor notes he continues to progress in his knowledge and skill levels, and is an asset to the Library Staff. Inmate King also participates in College (Correspondence and Onsite), Criminals and Gang Members Anonymous, Alcoholics Anonymous, Narcotics Anonymous, voluntary e-Learning, Alternatives to Violence Project, Getting Out by Going In, and Veterans Support Group. King has received numerous certificates and one laudatory chrono from these group sponsors

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acknowledging his commitment and dedication to these self-awareness and improvement groups.

Having reviewed the enclosed documentation it appears that inmate King's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in cursive script that reads "K. Allison".

KATHLEEN ALLISON

Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office

Los Angeles County Public Defender's Office